



File No.: EXP202210123

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On August 11, 2022, a complaint was filed with the Spanish Agency for Data Protection against BEL AIR URBAN CLUB and ***COMPANY.1, S.L. (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant states that the complained party has two surveillance cameras at the entrance to its facilities that are directed towards public areas, without prior administrative authorization, and without being marked with the required informative signs of the monitored area.

Images of the location of the cameras are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was returned as undeliverable by the postal service on October 14, 2022, as it had not been collected at the office after two attempts with the result "absent delivery" on October 5 and 6, 2022.

The forwarding was reiterated on October 17, 2022, and was again returned on November 2, 2022, as "absent delivery" on October 24 and 25, 2022, according to the acknowledgment of receipt from the postal service that is part of the file.

No response has been received to this forwarding letter.

THIRD: On November 11, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

C/ Jorge Juan, 6

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FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

On November 17, 2022, searches were conducted on Google and Google Maps with the name of the complained party, and it was observed that there is a company located in the vicinity, on the back street, with a similar name (***COMPANY.1).

On that date, information was requested from both companies from the State Agency for Tax Administration in order to obtain the identification of the complained establishment, responding again that the required data from the complained party could not be obtained with the information provided and supplying the necessary information about ***COMPANY.1.

In order to somehow relate the company ***COMPANY.1 with the complained party, searches for information were conducted on Instagram, observing that there are two Instagram accounts whose activity is located at the complained address, both with names starting with BELAIR (BEL AIR URBAN CLUB and BEL AIR HOOKAH) and with the same contact phone number.

A consultation was made on the website of the Telecommunications Numbering and Operators Registry of CNMC to gather the operator to which this phone number belongs, VODAFONE, and the operator was requested for the identifying and contact details of the holder of the telephone line.

VODAFONE responded, on November 21, 2022, providing the name of a natural person. The name of this person was searched in Google with the aim (unsuccessful) of verifying their possible relationship with ***COMPANY.1, and it was observed that this person is the administrator of two companies related to events, to which requests for information were made to demonstrate the relationship with ***COMPANY.1. These requests were made available in the Electronic Notification Service and Enabled Electronic Address on December 13, 2022, with both being automatically rejected on December 24, 2022.

On January 16, 2023, a request for information was sent to the Urban Planning Area of the ***LOCALITY.1 City Council to gather information about the companies located at the complained address. The request was notified on January 17, 2023, and was not answered within the established timeframe.

On February 9, 2023, a call was made to the switchboard of the ***LOCALITY.1 City Council, which transferred the call to the secretary of the

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www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/7

Urban Planning Councilor of the ***LOCALIDAD.1 City Council, to inform of the absence of response from said City Council to the request for information notified on January 17, 2023.

On February 16, 2023, the Municipal Urban Planning Management of the ***LOCALIDAD.1 City Council sent information regarding the ownership of the activity of the claimed party, stating:

- .- That the activity is carried out on the property located at C/ ***DIRECCIÓN.1.
 - .- That since April 12, 2022, the company ***EMPRESA.1, S.L. with NIF B88499942, has submitted a responsible declaration for the reform of the Bar-Restaurant activity with performances at that address.
- On March 16, 2023, the claiming party submitted a document informing that the premises were acquired by a bank at the beginning of this year, which has removed the cameras upon starting renovations.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time of obtaining such data:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;

- e) the recipients or categories of recipients of the personal data, where applicable;
 - f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of them or the place where they have been made available.
2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent data processing:
- a) the period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
 - b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
 - c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;
 - d) the right to lodge a complaint with a supervisory authority;
 - e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;
 - f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.
3. When the controller intends to process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to that further processing, information on that other purpose and any other pertinent information in accordance with paragraph 2. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

III

The image is a personal data

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28001 – Madrid

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5/7

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;” Images generated by a system of cameras or video cameras are personal data, and their processing is subject to data protection regulations.

Regarding processing for surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation

to the purposes for which they are processed.”

The application of the principle of data minimization in the area of surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is governmental authorization, can only be carried out by the Security Forces and Corps.

In some cases, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to guarantee the purpose of security.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras cannot capture images of third-party private spaces and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors or affecting their private sphere without a justified cause is not permitted.

IV

Application of the principle of presumption of innocence

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28001 – Madrid

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6/7

The principle of presumption of innocence prevents imputing an administrative infringement when there is no obtained and verified evidence of the facts that motivate the imputation or of the alleged infringer's involvement in them. Applying the principle “in dubio pro reo” in case of doubt regarding a specific and determined fact, which obliges, in any case, to resolve such doubt in the most favorable way for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of *ius puniendi* in its various manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended.

In this sense, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: “that the sanction is based on acts or incriminating evidentiary means of the reproachable conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must translate into an acquittal.”

The presumption of innocence governs without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

In the present case, although from the complaint presented it could initially be inferred that the complained party was obtaining images of the public road, which would imply a violation of Article 5.1.c of the GDPR, in the terms already described, the documentation provided to the file does not reveal that the cameras in question were capturing public roads; nor even that they were operational and connected to any surveillance system.

Additionally, it should be noted that they ceased to be in the claimed location more than a year ago after the premises were sold to a bank.

V

Conclusion

Therefore, based on the information indicated in the previous paragraphs, no evidence has been obtained that demonstrates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

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7/7

In accordance with the provisions indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the respondent party and to the complainant party.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions established in Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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